IN THE HIGH COURT FOR THE STATE OF TELANGANA
AT HYDERABAD
(Special Original Jurisdiction)

TUESDAY, THE SEVENTH DAY OF APRIL
TWO THOUSAND AND TWENTY SIX

PRESENT

THE HONOURABLE SRI JUSTICE NAGESH BHEEMAPAKA

WRIT PETITION NO: 34438 OF 2024

Between:

1. Anandapu Tirupathi, S/o. Bhoomaiah, Age 35 years, R/o. H.No.6-14/1, Subbakkapalli village, Tekurutla Mandal, Jayashankar Bhupalapalli District.
2. Duvvala Narsaiah **(Withdrawn),** S/o.Venkata Rajam, Age 55 years, H.No.6-32/1, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District
3. Billa Hema, W/o. Satyanarayna Reddy, Age 53 years, H.No.2-53, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District
4. Duvala Rajaiah **(Withdrawn),** S/o. Papaiah, Age 80 years, H.No.2-28, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District.
5. Duvvala Satyanarayana **(Withdrawn),** S/o.Rajaiah, Age 50 years, H.No.26, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District.
6. Duvvala Vasantha **(Withdrawn),** W/o.Narsaiah, Age 49 years, H.No.1-21, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District
7. Duvvala Swapna **(Withdrawn)**, W/o.Krishna Murthy, Age 48 years, H.No.1-24, Nawabpeta Chityal Mandal, Jayashankar Bhupalapalli District
8. Konni Vidhisha, W/o.Srinivas Reddy, Age 36 years H.No.12-26, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District
9. Anandapu Rajaiah, S/o. Bommaiah, Age 39 years, H.No.1-43, Subbakkapalli village, Tekurutla Mandal, Jayashankar Bhupalapalli District
10. Billa Hemanth Reddy, S/o. Satyanarayana Reddy, Age 31 years, H.No.2-53, Nawabpeta Chityal Mandal, Jayashankar Bhupalapalli District
11. Pingili Ravindar Reddy **(Withdrawn),** S/o. Papi Reddy, Age 61 years, H.No.1-28, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District

All the Petitioners are farmers by Occupation

The WP No.34438 of 2024 is dismissed as withdrawn for Petitioner Nos.2,4,5,6,7 and 11 as per C.O.dt.20.11.2025 in IA No.2/2025.

...PETITIONERS

AND

1. The State of Telangana, Rep. by its Principal Secretary, Revenue (JA and LA) Department, Dr. B.R. Ambedkar Secretariat buildings, Hyderabad.
2. District Collector, Jayashankar Bhupalapally District, Bhupalapally, Telangana State
3. Revenue Divisional Officer cum Competent Authority for Land Acquisition, Bhupalapally Division, Bhupalapally, Jayashankar Bhupalapally District,
4. Mandal Tahsildar, Chityal mandal, Chityal, Jayashankar Bhupalapally District
5. Union of India, Rep by its Secretary, Ministry of Road, Transport and Highways, New Delhi
6. The National Highway Authority of India, Rep. by its, Regional Officer, Banjara Hills, Road No.3, Beside SBH Staff College, Hyderabad
7. The Project Director, National Highways Authority of India, PIU, Warangal, 1-8-630, Balasamudram, Hanamkonda -506001

...RESPONDENTS

Petition under Article 226 of the Constitution of India praying that in the circumstances stated in the affidavit filed therewith, the High Court may be pleased to issue a Writ, Order, or Direction more particularly one in the nature of WRIT OF MANDAMUS declaring the action of 03rd and 07th respondents in proceeding to take possession of the subject lands of the petitioners, based on erroneous and invalid 3D notifications and incomplete and incorrect awards u/s 3G(1), without considering the objections of the petitioners to the acquisition, extents of lands under acquisition and non-enumeration of structures and trees in the subject lands, without passing of Rehabilitation and Resettlement awards and in violation of provisions of NH Act 1956 read with the RFCTLARR (Removal of Difficulties) order dt.28.08.2015 and principles of natural justice as illegal and unconstitutional and consequently set aside (a) 3A notifications vide S.O.No.1016 dt.02.03.2021 and S.O.No.1869 dt.19.04.2022, (b) 3D notifications vide No.814 dt.22.02.2022 and No.4780 dt.07.10.2022 (c) public notice u/s 3G (3) vide No.J/69/2021 dt.08.03.2023 (d) awards passed u/s 3G(1) dt.16.01.2024 and 09.03.2024 and subsequent modification orders dt.05.09.2024, regarding acquisition of subject lands of the petitioners in Nawabpet village, Chityal mandal of Jayashankar Bhupalapally District for the proposed NH-163G on the stretch of land from km.63.779 to 88.418 (Bhupalapally) in the District of Jayashankar Bhupalapally.

I.A. NO: 1 OF 2024

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to direct the respondent authorities not to take any coercive steps against the petitioners regarding their subject lands in Nawabpet village, Chityal mandal, Jayashankar Bhupalapally district, that are notified for acquisition for four-laning of proposed stretch of NH -163G from km.63.779 to 88.418 (Bhupalapally) vide 3D notification S.O.No.814 dt.22.02.2022 and S.O.No.4780 dt.07.10.2022 and subsequent awards dt.16.01.2024 and 19.03.2024 and further modification orders dt.05.09.2024 under National Highways Act, 1956, pending disposal of the writ petition.

I.A. NO: 1 OF 2025

Between:

1. The National Highway Authority of India, Rep. by its, Regional Officer, Banjara Hills, Road No.3, Beside SBH Staff College, Hyderabad
2. The Project Director, National Highways Authority of India, PIU, Warangal, 1-8-630, Balasamudram, Hanamkonda -506001

...PETITIONERS

AND

1. Anandapu Tirupathi, S/o. Bhoomaiah, Age 35 years, R/o. H.No.6-14/1, Subbakkapalli village, Tekurutla Mandal, Jayashankar Bhupalapalli District.
2. Duvvala Narsaiah, S/o.Venkata Rajam, Age 55 years, H.No.6-32/1, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District
3. Billa Hema, W/o. Satyanarayna Reddy, Age 53 years, H.No.2-53, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District
4. Duvala Rajaiah, S/o. Papaiah, Age 80 years, H.No.2-28, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District.
5. Duvvala Satyanarayana, S/o.Rajaiah, Age 50 years, H.No.26, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District.
6. Duvvala Vasantha, W/o.Narsaiah, Age 49 years, H.No.1-21, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District
7. Duvvala Swapna, W/o.Krishna Murthy, Age 48 years, H.No.1-24, Nawabpeta Chityal Mandal, Jayashankar Bhupalapalli District
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10. Billa Hemanth Reddy, S/o. Satyanarayana Reddy, Age 31 years, H.No.2-53, Nawabpeta Chityal Mandal, Jayashankar Bhupalapalli District
11. Pingili Ravindar Reddy, S/o. Papi Reddy, Age 61 years, H.No.1-28, Nawabpeta village, Chityal Mandal, Jayashankar Bhupalapalli District
12. The State of Telangana, Rep. by its Principal Secretary, Revenue (JA and LA) Department, Dr. B.R. Ambedkar Secretariat buildings, Hyderabad.
13. District Collector, Jayashankar Bhupalapally District, Bhupalapally, Telangana State
14. Revenue Divisional Officer cum Competent Authority for Land Acquisition, Bhupalapally Division, Bhupalapally, Jayashankar Bhupalapally District,
15. Mandal Tahsildar, Chityal mandal, Chityal, Jayashankar Bhupalapally District
16. Union of India, Rep by its Secretary, Ministry of Road, Transport and Highways, New Delhi

...RESPONDENTS

Petition under Section 151 CPC praying that in the circumstances stated in the affidavit filed in support of the petition, the High Court may be pleased to vacate the interim order dated 6.12.2024 passed in IA No. 1 of 2024 and dismiss the interim application with exemplary cost, pending disposal of the writ petition.

Counsel for the Petitioners: SRI CH.RAVI KUMAR

Counsel for the Respondent No.1 to 4: GP FOR LAND ACQUISITION

Counsel for the Respondent No.5: SRI B.NARASIMHA SHARMA, ADDL. SOLICITOR GENERIAL OF INDIA

Counsel for the Respondent No.6 & 7: SRI M.RAMU, SC FOR NHAI

The Court made the following: ORDER

IN THE HIGH COURT FOR THE STATE OF TELANGANA AT HYDERABAD

THE HON'BLE SRI JUSTICE NAGESH BHEEMAPAKA

WRIT PETITION No. 34438 of 2024

07th April, 2026

Between:

1. Anandapu Tirupathi S/o Bhoomaiah, and others

... Petitioners

AND

1. The State of Telangana, and others

... Respondents

ORDER:

The case of the petitioners, precisely as per the writ affidavit, is that in the first week of April 2021, they first became aware—purely by chance—of a Section 3A notification published in Gazette No. 10162(E) dated 02.03.2021, which had appeared in newspapers on 25.03.2021, proposing acquisition of lands in approximately 10 villages in Chityal, Mogullapally, and Tekumatla mandals, including portions of the petitioners' lands. The notification, however, contained only survey number-wise extents and lacked landowner details, preventing them from filing meaningful objections. Nevertheless, they submitted preliminary objections within the stipulated time to the competent authority, expressing their unwillingness to part with their lands and proposing, as an alternative, the expansion of an existing highway rather than the construction of a new one. These objections were reiterated during a discussion held on 31.05.2021, where they emphasized their dependence on the land for livelihood. The

petitioners assert that no formal notice of hearing, nor any communication regarding the disposal of their objections, was ever prov ded thereafter.

1.1 It is stated that in March 2023, they came to know of a public notice under Section 3G displayed at the Gram Panchayat office, calling upon affected landowners to submit documents for compensation claims. It is stated that this was the first instance where farmer-wise extents of land acquisition was disclosed, as they had not been previously informed of the Section 3D declaration. Acting on this notice, some petitioners submitted representations highlighting discrepancies in survey numbers and extents, and pointing out the omission of structures and trees from the acquisition. They also reiterated their earlier objection to the project alignment. It is stated that the authorities orally assured them that these d screpancies would be examined and rectified prior to passing the awards.

1.2. It is stated that, contrary to these assurances, during April and May 2024 the petitioners were served individual award notices specifying acquisition extents and compensation amounts. These notices allegedly stated that there were no trees or structures on the lands. They assert that no proper award enquiry was conducted and that they were denied copies of the award proceedings at that stage. Although officials, including the Tahsildar, subsequently visited the lands and conducted some form of enquiry, no prior notices, reports, or revised findings were shared with the petitioners. It was only in October 2024, through applications made under the Right to Information Act, they obtained copies of the awards and related proceedings, including modification orders dated 05.09.2024, which altered both land extents and compensation amounts without issuing fresh notices.

1.3. Upon reviewing these documents, the petitioners discovered that multiple Section 3A notifications dated 10.03.2021 and 21.04.2022 had

been issued for the same highway stretch, followed by corresponding Section 3D declarations dated 22.02.2022 and 07.10.2022. They assert that only one set of notifications was ever publicly displayed, and that the second set was neither locally published nor communicated to them. They further allege that only one public notice under Section 3G(3) dated 08.03.2023 was issued, and that no notice was given for the second set of proceedings. According to the petitioners, the authorities failed to provide landowner-specific details, did not conduct Gram Sabha consultations, and issued notifications in newspapers with negligible circulation, thereby defeating the statutory purpose of publication. It is alleged that no personal hearing was conducted before issuance of the Section 3D notification dated 22.02.2022, nor were any orders disposing of their objections communicated.

1.4. The petitioners contend that the awards themselves are legally unsustainable, as they omit compensation for structures and trees and fail to include Rehabilitation and Resettlement (R&R) benefits, which they contend are mandatory under the 2013 Act as applied to acquisitions under the National Highways Act. They assert that the term "compensation" under Section 3G must be interpreted to include not only land value but also structures and R&R entitlements, in accordance with Sections 16 to 18, 21 to 30, 23, and 31 of the 2013 Act and the Schedules thereto. It is contended that possession cannot be taken under Section 3H unless such comprehensive compensation is determined and paid.

1.5. It is contended that the respondent authorities have proceeded on the basis that valid notifications and awards were issued and that compensation has been determined in accordance with law. However, the petitioners state that the respondents ignored the discrepancies, failed to

conduct proper enquiries, and subsequently issued modification orders to correct errors without granting any opportunity of hearing to the affected landowners, and these actions themselves demonstrate that the original notifications and awards were erroneous and issued without due diligence.

1.6. The petitioners therefore contend that the entire acquisition process is procedurally flawed due to lack of diligence—from the initial notifications in March 2021 and April 2022, through the declarations in February and October 2022, the public notice in March 2023, the awards in January and March 2024, and the modifications in September 2024—is procedurally flawed. The petitioners contend that they remain in possession of the lands, with standing crops, and that any attempt to dispossess them without lawful determination and payment of full compensation and R&R benefits would cause irreparable harm.

2. A counter affidavit has been filed by respondents No. 6 and 7, essentially contending that the petitioners have failed to establish any illegality in the acquisition process and that all actions undertaken for acquisition of land for the NH-163G project—from Km. 63.779 to Km. 88.418 in Jayashankar Bhupalapally District—have been carried out strictly in accordance with the National Highways Act, 1956 and the applicable provisions of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.

2.1. Tit is stated that National Highways Authority of India (NHAI), constituted under the 1956 Act, initiated the greenfield highway project to reduce travel distance, lower vehicle operating costs, and promote economic development. The Revenue Divisional Officer, Bhupalpally, was duly appointed as the Competent Authority for Land Acquisition (CALA),

and a requisition was made for acquisition of lands across 14 villages, including those of the petitioners. The process began with the issuance of a Section 3A notification vide S.O. No. 1016(E) dated 02.03.2021, the substance of which was published in the newspapers "Mana Telangana" (Telugu) and "The Hindu" (English) on 25.03.2021, granting 21 days for objections. The respondents state that objections were indeed received from certain landowners, primarily seeking alignment changes and market-value compensation. In response, the CALA issued notices under Section 3C(2), calling all interested persons to appear for a personal hearing on 31.05.2021 at 11:00 AM. After considering these objections, the CALA rejected them through office proceedings No. J/69/2021/NH dated 05.08.2021, and communicated replies to the objectors. This culminated in the issuance of a Section 3D declaration vide S.O. No. 814(E) dated 22.02.2022.

2.2. It is contended that an additional Section 3A notification vide S.O. No. 1869(E) dated 19.04.2022 was issued to cover certain missing extents, and its substance was published in the same newspapers on 08.05.2022, again granting 21 days for objections. No objections were received in response to this second notification, leading to a subsequent Section 3D declaration vide S.O. No. 4780(E) dated 07.10.2022. It is contended that upon publication of the Section 3D notifications, the land vested absolutely in the Central Government free from encumbrances. It is stated that environmental clearance for the project was granted on 05.07.2023 by the Ministry of Environment, Forest and Climate Change.

2.3. It is stated that a public notice under Section 3G(3) was issued on 28.02.2023 in "Mana Telangana" and "The Hindu", requiring interested persons to appear before the Competent Authority on 18.03.2023 during office hours to submit claims with documentary proof. Thereafter, awards

were passed by Respondent No. 3/CALA on 16.01.2024 and 09.03.2024 under proceedings No. J/69/2021-NH-163G/Nawabpet, following what they describe as a due and lawful enquiry process. These awards determined compensation in accordance with the NH Act, 1956 read with Sections 26 to 30 of the 2013 Act, and the awarded amounts were duly deposited with the competent authority. The respondents acknowledge that in some cases, landowners did not attend the enjoyment survey or award enquiry, or failed to produce title documents, leading the CALA to pass awards based on available records. Subsequently, when certain land losers submitted claims and documents or pointed out discrepancies in survey numbers and extents, a field survey was conducted and a modification award dated 05.09.2024 was issued to rectify such variations and correctly demarcate ownership and extents in revised statements.

2.4. It is stated that objections were considered, and a personal hearing was conducted on 31.05.2021 and the objections were rejected vide orders issued on 05.08.2021. It is contended that notifications were duly published in widely circulated newspapers in Telugu and English languages, and that statutory requirements under Section 3A(3) were fully complied with. It is stated that additional notifications were issued Section 3A notification dated 19.04.2022 only to include additional or missing extents, and there is no duplication or overlap of extents of land. It is also stated that opportunity under Section 3G, vide public notice dated 28.02.2023 was afforded and the hearing was scheduled on 18.03.2023.

2.5. It is contended that compensation was determined after due enquiry and in accordance with law, and that any subsequent corrections were legitimately addressed through the modification award dated 05.09.2024. It is contended that this modification was a corrective measure

undertaken after some landowners belatedly produced documents or raised discrepancies, and that the inconsistencies arose due to the petitioners' own failure to participate fully in the enquiry process or submit necessary documentation in time.

2.6. It is contended that while compensation is to be determined under Sections 26 to 30 of the Act with effect from 01.01.2015, the provisions relating to Rehabilitation and Resettlement (R&R) under the Second and Third Schedules apply only in cases of actual displacement or dislocation, and the petitioners do not qualify as "displaced families" under Section 3(k), as only small extents of land have been acquired, thereby relocation or resettling the petitioners does not arise. They further contend that no documentary evidence has been produced by the petitioners to establish loss of livelihood or displacement, and that such factual determinations cannot be adjudicated in writ jurisdiction.

2.7. It is contended that if the petitioners are aggrieved by the compensation awards, they have an alternative statutory remedy under Section 3G(5) of the NH Act, 1956 to approach the designated arbitrator, and therefore the writ petition is not maintainable.

3. A counter affidavit has been filed by respondent No.3-Revenue Divisional Officer, acting as Competent Authority for Land Acquisition (CALA) and representing Respondent Nos. 1, 2, and 4. It is contended that there has been full compliance with statutory procedure at every stage of acquisition proceedings, right from issuance of Section 3A notification, and adequate opportunities were provided to landowners.

3.1. It is contended that the acquisition relates to the greenfield highway alignment from Km. 63.779 to Km. 88.418 in Jayashankar

Bhupalpally District, for which the Revenue Divisional Officer, Bhupalpally, was designated as CALA through Gazette Notification No.3099 dated 27.08.2019. The acquisition process formally commenced with the publication of a Section 3A notification in newspapers on 25.03.2021, triggering a statutory 21-day period for objections, which expired on 14.04.2021. The respondent asserts that while some objections were received from certain interested persons, no objections were filed by the present petitioners within this stipulated period. Consequently, the process moved forward, and a Section 3D declaration was issued and published on 22.02.2022.

3.2. It is contended that during the preparation of subdivision records following the first Section 3D notification, certain extents of land were found to have been inadvertently omitted from the initial Section 3A notification. To address this, additional Section 3A notifications were issued twice, strictly limited to the missing extents and without any overlap, followed by corresponding Section 3D and Section 3G proceedings after disposal of objections in accordance with Section 3C of the Act. The respondent emphasizes that all such notifications were published in compliance with statutory requirements, namely in two local newspapers—"Mana Telangana" (Telugu) and "The Hindu" (English)—as mandated, and that subsequent publications were made in the same newspapers to maintain procedural consistency.

3.3. It is stated that environmental clearance for the project was granted by the Ministry of Environment, Forest and Climate Change on 05.05.2023, and that this clearance was publicly notified in "Mana Telangana" on 25.08.2023. The respondent also refers to final declarations under Section 3D published in the Gazette of India on 28.02.2023 and

23.08.2023 for additional extents, emphasizing that under Section 3D(2), the land vests absolutely in the Central Government upon such publication and cannot be challenged thereafter.

3.4. It is stated that awards were passed under proceedings dated 20.01.2024 and 14.03.2024, after conducting due enquiry under Section 3G. These awards determined compensation in accordance with Sections 26 to 30 of the RFCTLARR Act, 2013, including 100% solatium, 12% additional market value calculated from the date of the Section 3A notification to the date of the award, and a multiplication factor of 1.5 applicable to rural lands. Following the awards, notices under Section 3E were issued to the petitioners to receive compensation, but the respondent alleges that they failed to come forward to collect the amounts. The respondent also details that where discrepancies in names or title were identified, corrections were made at the award stage through speaking orders based on original documents.

3.5. It is contended that certain landowners, including petitioner No. 9, later submitted petitions highlighting discrepancies in survey alignments and extents, prompting a re-survey. This re-survey revealed variations, leading to the issuance of modified awards, supported by revised enjoyment statements, and the publication of re-survey reports in the village by Respondent No. 4. It is contended that these modifications were not procedural lapses but were legitimate corrections. Further, in relation to structures and trees, the initial resistance by some farmers prevented enumeration during the survey stage, resulting in awards being passed based on land value alone. However, after subsequent cooperation, enumeration reports were received, and the respondent has undertaken that

supplementary award for structures and trees would be passed within one week.

3.6. It is contended that both first and second notices were issued on 08.03.2023 and placed in the Gram Panchayat office, with individual notices served on the petitioners or their family members, including service on the parents of petitioner No. 10. It is contended that no houses have been displaced and that the petitioners do not fall within the definition of "displaced family." It is contended that since no relocation or resettlement has occurred, the provisions of the Second and Third Schedules of the RFCTLARR Act, 2013 are not attracted. The respondent reiterates that only compensation-related provisions under Sections 26 to 30 apply, and that the compensation awarded already includes all statutory benefits such as solatium and additional market value.

3.7. It is contended that out of 615 land losers affected by the project, only the present petitioners have approached the Court. It is stated some petitioners were parties to W.P. No. 13384 of 2023, which was disposed of on 06.03.2024 with directions not to interfere with possession without due process and compensation, and the directions of the Court have been fully complied with through lawful acquisition proceedings and payment of compensation, and therefore the writ petition is liable to be dismissed.

4. A reply affidavit is filed by the petitioners, in response to the counter affidavit of the respondent No.3, essentially contending that the respondents have failed to demonstrate compliance with mandatory procedural safeguards under the National Highways Act, 1956 and the RFCTLARR Act, 2013, and that the acquisition process remains fundamentally vitiated

by lack of due process, absence of proper notice and hearing, and failure to determine full statutory entitlements. They therefore maintain that the writ petition deserves to be allowed.

4.1. It is stated that the petitioners had submitted objections and representations within time, however, the respondent has failed to produce any record of consideration of those objections. They assert that no personal hearing under Section 3C was ever conducted and no order disposing of objections was communicated to them at any stage.

4.2. It is contended that, by the respondent's own admission, the environmental clearance for the project was obtained only on 05.07.2023, whereas the Section 3D declarations had already been issued earlier in 2022 and 2023. On this basis, they contend that the declarations themselves are legally invalid, as they were made without prior environmental approval, and the clearance granted in July 2023 amounts to an impermissible post facto clearance.

4.3. The petitioners contend that the repeated issuance of notifications—purportedly to cover "missing extents"—demonstrates a lack of due diligence in finalizing the alignment and preparing land records. This failure resulted in incomplete and vague initial notifications that did not contain subdivision-wise or pattadar-wise details, thereby depriving them of a meaningful opportunity to understand the extent of acquisition and to file effective objections. They further state that the issuance of a subsequent Section 3A notification on 19.04.2022 after a Section 3D declaration dated 22.02.2022 is procedurally impermissible. More critically, they allege that yet another Section 3A notification dated 09.12.2024 was issued for the same lands even after passing of awards and after filing of the writ petition.

4.4. It is contended that proper individual notices under Section 3G(3) were not served, and merely placing notices in the Gram Panchayat does not satisfy the requirement of issuing individual notices to affected landowners. They further state that the alleged second Section 3G notice was never made available and that they could access such documents only later through RTI applications and newspaper publications. It is contended that no proper survey or marking exercise was conducted by the authorities, which is evident from the repeated issuance of notifications. It is contended that if authorities could measure land extents, there was no justification for failing to enumerate trees and structures, and therefore the awards passed without including such components are incomplete and invalid.

4.5. It is contended that Rehabilitation and Resettlement benefits under the Second Schedule, by virtue of the Removal of Difficulties Order, 2015, apply to acquisitions under the National Highways Act; and that no Rehabilitation and Resettlement awards have been passed till date, and therefore possession cannot be taken until full statutory entitlements are determined and paid.

4.6. The petitioners reject the respondent's suggestion that they should pursue arbitration under Section 3G(5), by contending that their challenge is to the legality of the acquisition process itself. It is contended that despite interim orders of the Court, the respondent authorities entered the lands of petitioner Nos. 1 and 9 on 14.06.2025 and damaged standing crops, and that no remedial action was taken despite representations and indicate their intention to initiate contempt proceedings.

5. Heard Mr. Ch. Ravi Kumar, learned counsel for the petitioners; learned Standing Counsel for NHAI, learned Standing Counsel for CALA,

and Mr. B. Narasimha Sarma, learned Additional Solicitor General of India. Perused the record.

6. Learned counsel for the petitioners would essentially contend that the entire land acquisition process undertaken for the NH-163G project from Km. 63.779 to Km. 88.418 is vitiated by procedural illegality, arbitrariness, and violation of principles of natural justice, warranting interference under Article 226. It is contended that the Section 3A notifications dated 02.03.2021 and 19.04.2022, and the subsequent Section 3D declarations dated 22.02.2022 and 07.10.2022, suffer from lack of proper publication, absence of landowners details, and failure to provide meaningful opportunity to file objections, as the petitioners came to know of the acquisition only in April 2021 through newspapers with no local circulation. It is contended that although objections were filed and reiterated on 31.05.2021, no personal hearing under Section 3C was conducted and no order with regard to disposal of their objections was ever communicated. It is further contended that the authorities issued multiple and inconsistent notifications for the same lands without finalizing alignment, thereby depriving the petitioners of their statutory rights. The public notice under Section 3G(3) dated 08.03.2023 was the first instance where actual extents were disclosed, and even thereafter, discrepancies in survey numbers, omission of structures and trees, and lack of clarity persisted. The awards dated 16.01.2024 and 09.03.2024 are assailed as incomplete and arbitrary, as they exclude compensation for structures and trees and omit mandatory Rehabilitation and Resettlement benefits under the RFCTLARR Act, 2013 read with the Removal of Difficulties Order dated 28.08.2015. It is contended that the subsequent modification orders dated 05.09.2024, altering extents and compensation without notice, themselves demonstrate

lack of due diligence and illegality in the original awards. The counsel argues that possession cannot be taken under Section 3H unless full compensation, including R&R entitlements, is determined and paid. It is also submitted that there was no proper survey, no Gram Sabha consultation, and no transparency in the process. It is stated that out of 11 petitioners, only petitioner Nos. 1, 3, 8, 9 and 10 are challenging the acquisition proceedings in this writ petition, and the other petitioners received the compensation and have withdrawn from the writ petition. Learned counsel therefore seek to set aside the impugned notifications, awards, and proceedings insofar as the petitioners No. 1, 3, 8, 9 and 10 are concerned, and that fresh acquisition proceedings be initiated, at least from the Section 3G(3) stage if not from Section 3A, with proper notice, accurate land details, and lawful determination of compensation including all statutory benefits.

6.1. Learned counsel for the petitioners relies on:

1) **Akkala Chandrakala v. The State of Telangana**[1];

2) **Kolkata Municipal Corporation v. Bimal Kumar Shah**[2];

3) **B.K. Ravichandra v. Union of India**[3];

4) **Hindustan Petroleum Corpn. Ltd. v. Darius Shapur Chenai**[4];

5) **K. Ramachandram v. State of Telangana**[5];

6) **Madi Satyavati v. State of Telangana**[6];

7) **Manorama Devi v. National Highways Authority of India**[7];

8) **Nagpur Improvement Trust v. Vithal Rao**[8];

9) **National Highways Authority of India v. P. Nagaraju alias Cheluvaiah**[9];

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[1] W.P. No. 11486 of 2024 (Telangana High Court)
[2] (2024) 10 SCC 533
[3] (2021) 14 SCC 703
[4] (2005) 7 SCC 627
[5] W.P. No. 23939 of 2013 (Telangana High Court)
[6] W.A. No. 676 of 2023 (Telangana High Court)
[7] Neutral Citation No. 2023 : AHC : 240588 – DB (Allahabad High Court)
[8] (1973) 1 SCC 500
[9] (2022) 15 SCC 1

10) **Ranivr Singh v. National Highways Authority of India**[10];

11) **Union of India v. Shiv Raj**[11];

12) **State of Uttar Pradesh v. Singhara Singh**[12]

6.2. In **Akkala Chandrakala (supra),** this Court considered a dispute over land acquisition for the development of National Highway 765DG. The petitioners, whose homes were being acquired, sought Rehabilitation and Resettlement (R&R) benefits under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, while government authorities argued that such benefits were not applicable to the road-widening project under the National Highways Act, 1956. This Court, by interim order dated 12.11.2024, rejected the authorities' prayer to vacate an earlier stay order and indicated that highway acquisitions remain subject to modern R&R protections, and granted status quo until final hearing, while allowing authorities to begin the formal process of determining and awarding R&R compensation.

6.3. In **Bimal Kumar Shah (supra)**, the Hon'ble Supreme Court broadened the understanding of the constitutional right to property under Article 300-A of the Constitution of India by stating that lawful land acquisition requires more than just public purpose and compensation. The Hon'ble Supreme Court identified seven essential procedural sub-rights—including the right to notice, the right to be heard, and the right to a reasoned decision—along with requirements for an efficient process and fair rehabilitation. Ruling against the Kolkata Municipal Corporation, the

[10] 2023 SCC OnLine All 5276
[11] (2014) 6 SCC 564
[12] 1963 SCC OnLine SC 23

Supreme Court held that any State action that ignores these safeguards is invalid.

6.4. In **B.K. Ravichandra (supra)**, the Hon'ble Supreme Court clarified the limits of Government power over private property. The Supreme Court held that although the right to property is no longer a fundamental right, it remains a constitutional safeguard under Article 300-A of the Constitution of India, protecting both physical land and intangible assets, and the government cannot occupy private land indefinitely without proper legal authority, as prolonged possession amounts to unlawful deprivation of property. Emphasizing the rule of law, the Court rejected any notion that the State can act with "royal prerogative" and insisted that all State actions must be backed by clear statutory authority. As a result, the Court ordered the return of land that had been held by the government for over thirty years and directed that fair compensation be paid to the rightful owners.

6.5. In **Darius Shapur Chenai (supra),** the Hon'ble Supreme Court examined the procedural safeguards required under the Land Acquisition Act, 1894 during the acquisition of private property. The Supreme Court focused on whether the State had genuinely considered the landowner's objections as required under Section 5-A of the Land Acquisition Act, 1894. It held that the right to object and be heard under Section 5-A is a significant safeguard—comparable in importance to a fundamental right—and must involve a real and careful consideration by the government rather than a mere formality. The Court further ruled that when such decisions are challenged, the government must produce its records to demonstrate that a fair decision-making process was followed. Since the State failed to provide adequate evidence or a proper counter-affidavit, the

Court upheld the quashing of the acquisition, reinforcing that laws allowing the taking of private property must be strictly interpreted to prevent arbitrary state action.

6.6. In **K. Ramachandram (supra),** this Court examined whether the government had followed the required statutory procedures while attempting to acquire the petitioner's land; and held that although the preliminary notification remained valid because it had been properly extended, the later declaration was unlawful due to the authorities' failure to prepare and publish mandatory rehabilitation and resettlement schemes under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. Finding that these procedural safeguards are essential to protect the landowner's rights, the declaration was quashed with a direction to the government to strictly comply with the Act if it wishes to proceed with the acquisition, while also encouraging both parties to pursue an amicable settlement through land exchange or fair monetary compensation.

6.7. In **Madi Satyavati v. State of Telangana**[13], the Division Bench of this Court dealt with a matter pertaining to land acquisition for a railway project; and held that not only the mother, but also her three daughters, qualify as an affected family under Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013; and modified a prior order to ensure that rehabilitation benefits are determined for the daughters in addition to the mother's solatium and allowed the appellants to seek a formal reference if they are dissatisfied with

[13] W.A. No. 676 of 2023 (Telangana High Court)

the final monetary compensation, reinforcing that the rights of all affected family members must be recognized in land acquisition cases.

6.8. In **Manorama Devi (supra)**, the Allahabad High Court adjudicated a petition filed by Manorma Devi against the National Highway Authority of India. The Allahabad High Court addressed her claim for rehabilitation and resettlement benefits, which she had not received despite being compensated for her land. The Court observed that her grievance aligned with previous cases under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013, where affected landowners were entitled to additional support. It directed the authorities to prepare a formal proposal within six months to provide the petitioner with entitlements for housing, employment, and relocation as outlined in the Second Schedule of the Act, and granted legal relief consistent with earlier, similar judgments.

6.9. In **Nagpur Improvement Trust (supra)**, the Hon'ble Supreme Court examined whether the Nagpur Improvement Trust Act violated Article 14 of the Constitution of India by allowing the State to acquire property at lower compensation rates than standard national laws. The Supreme Court held that the Government cannot justify paying different amounts for similar lands based solely on which authority conducts the acquisition or the stated public purpose. Emphasizing the principle of equal protection, the judgment affirmed that landowners are entitled to consistent, market-value compensation regardless of the acquiring body, and dismissed the appeal, ruling that discriminatory treatment in compensation or statutory bonuses is unconstitutional.

6.10. In **P. Nagaraju alias Cheluvaiah (supra)**, the Hon'ble Supreme Court addressed the determination of fair compensation and

clarified the role of Courts in reviewing arbitral awards under Section 34 of the Arbitration and Conciliation Act, 1996. The Supreme Court held that an arbitrator's failure to provide adequate and intelligible reasoning for compensation constitutes a ground of "patent illegality," justifying judicial intervention. Emphasizing equitable treatment for landowners, including solatium and interest, the ruling aligned compensation practices with constitutional protections and remanded the matter for recalculation of the property's market value using proper evidence and updated guideline rates.

6.11. In **Ranivr Singh (supra)**, the Allahabad High Court addressed petitions by displaced families who claimed that the National Highway Authority of India had failed to provide mandatory rehabilitation and resettlement benefits under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013. The Court held that the status of affected families must be properly assessed, rejecting the authorities' contention that linear road projects cause minimal disruption. It directed the competent authority to conduct a thorough inquiry and submit a resettlement proposal to the District Collector, ensuring that eligible landowners receive entitlements such as housing units, employment opportunities, or relocation allowances as part of their compensation.

6.12. In **Shiv Raj (supra)**, the Hon'ble Supreme Court considered the validity of land acquisition proceedings under the Land Acquisition Act, 1894. The Supreme Court highlighted procedural lapses, including violations of natural justice where objections were heard by one official but the final report was issued by another without a fresh hearing. It also examined the impact of the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013 on older

cases where the government delayed possession or failed to provide compensation for over five years.

6.13. In **Singhara Singh (supra)**, the Hon'ble Supreme Court addressed the admissibility of oral testimony regarding a defendant's confession, arising from a Second-Class Magistrate's failure to follow procedures under **Section 164 of the Code of Criminal Procedure, 1973**.

7. Learned Standing Counsel for the respondent–NHAI would contend that the writ petition is wholly misconceived, devoid of merit, and liable to be dismissed in limine, as the entire land acquisition process for the NH-163G project from Km. 63.779 to Km. 88.418 has been strictly conducted in accordance with the National Highways Act, 1956 and the applicable provisions of the Act of 2013. It is submitted that the acquisition commenced with a Section 3A notification dated 02.03.2021, duly published on 25.03.2021 in "Mana Telangana" and "The Hindu", granting 21 days for objections, followed by a personal hearing conducted on 31.05.2021 at 11:00 AM, and disposal of objections through proceedings dated 05.08.2021, culminating in the Section 3D declaration dated 22.02.2022. It is further contended that an additional Section 3A notification dated 19.04.2022 was issued only to cover missing extents, with no objections received, leading to a subsequent Section 3D declaration dated 07.10.2022, upon which the land vested absolutely in the Central Government. It is contended that environmental clearance was granted on 05.07.2023, and thereafter a Section 3G(3) public notice dated 28.02.2023 required landowners to attend enquiry on 18.03.2023 and submit claims. It is contended that awards dated 16.01.2024 and 09.03.2024 were passed after due enquiry, compensation determined under Sections 26 to 30 of the 2013

Act, and amounts duly deposited, while a modification award dated 05.09.2024 was issued only to rectify discrepancies upon subsequent claims and surveys. It is further contended that discrepancies, if any, were due to non-participation or failure of certain petitioners to produce documents during enquiry, and were later corrected lawfully. Learned counsel contends that Rehabilitation and Resettlement benefits apply only in cases of actual displacement, and the petitioners do not qualify as "displaced families" under Section 3(k), as only small extents were acquired. It is also submitted that the petitioners have not produced any proof of loss of livelihood, and the petitioners have an alternative remedy under Section 3G(5) by way of arbitration, and the writ petition not maintainable. It is contended that the directions in W.P. No. 13384 of 2023 have been misinterpreted by the petitioners; and that the present project is a vital public infrastructure initiative involving limited right-of-way of about 45 to 70 meters, causing minimal displacement, and any delays would lead to escalation of costs and loss to the public exchequer, and therefore the writ petition is liable to be dismissed.

8. Learned counsel for the Competent Authority for Land Acquisition (CALA) would contend that the entire acquisition process for the NH-163G greenfield highway from Km. 63.779 to Km. 88.418 has been conducted strictly in accordance with the National Highways Act, 1956 and the provisions of the RFCTLARR Act, 2013. It is submitted that the 3rd respondent was duly appointed as CALA vide Gazette Notification No. 3099 dated 27.08.2019, and the acquisition commenced with publication of Section 3A notification on 25.03.2021, granting 21 days up to 14.04.2021 for filing objections, during which the present petitioners failed to submit any objections. It is contended that thereafter Section 3D declaration was

validly issued on 22.02.2022, and additional Section 3A notifications were subsequently issued only to cover omitted extents, followed by corresponding 3D and 3G proceedings after due disposal of objections, all duly published in "Mana Telangana" and "The Hindu" as mandated. Learned counsel contends that environmental clearance was obtained on 05.07.2023 and published on 25.08.2023, and final declarations under Section 3D were also published on 28.02.2023 and 23.08.2023, upon which the land vested absolutely in the Central Government. It is further contended that awards were passed on 20.01.2024 and 14.03.2024 after due enquiry under Section 3G, determining compensation in terms of Sections 26 to 30 of the 2013 Act, including 100% solatium, 12% additional market value, and multiplication factor of 1.5, and that notices under Section 3E were issued, but the petitioners failed to come forward to receive compensation. Learned counsel submits that any discrepancies in names, extents or survey details were corrected through re-survey conducted upon representations of landowners, leading to modified awards, which are lawful corrective measures and not procedural lapses. It is contended that omission of structures and trees in initial awards was due to resistance by some farmers during survey, and supplementary awards are being processed based on subsequent enumeration. Learned counsel contends that the petitioners failed to file objections within time, and all notifications were properly published as per statute. It is further submitted that Section 3G(3) notices dated 08.03.2023 were issued and displayed in Gram Panchayat offices and served individually, and therefore adequate opportunity was provided. Learned counsel contends that no houses were displaced and the petitioners do not fall within the definition of "displaced family," thereby the Second and Third Schedules are not applicable.

9. Learned Additional Solicitor General relies on several judgments in support of his contention that a writ remedy is not maintainable in the instant case; particularly on **Ramniklal N. Bhutta v. State of Maharashtra**[14] and contends that the Courts have to weigh the public interest vis-à-vis the private interest while exercising the power and there are many ways of affording appropriate relief and redressing a wrong, and that quashing of acquisition proceedings is not the only mode of redress.

9.1. He also relies on **Nerajala Nageswara Rao v. Union of India**[15], to contend that alternative remedy harsh one should not be resorted in public purpose projects and larger public purpose prevails over individual interest. He also relies on **N.G. Projects Ltd. v. Vinod Kumar Jain**[16], to contend that construction of road is an infrastructure project and keeping in view the intent of the legislature that infrastructure projects should not be stayed, the High Court would have been well advised to hold its hand to stay the construction of the infrastructure project.

9.2. He also relies on **Bluepark Seafoods (P) Ltd v. District Collector**[17] and contends that in case of acquisition for benefit of general public, the landowner can stake claim for reasonable compensation and nothing beyond that. Relying on **NHAI v. Sayedabad Tea Company Ltd**[18], it is contended that National Highways Act is a special enactment and a comprehensive code which provides an inbuilt mechanism for initiating acquisition until culmination of the proceedings in determining the

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[14] 1997 (1) SCC 134
[15] 2017 SCC Online Hyd 250
[16] 2022 (6) SCC 127
[17] 2011 SCC OnLine AP 267
[18] (2020) 15 SCC 161

compensation and its adjudication by arbitrator under Section 3-G(5) of the NH Act.

9.3. He also relies on the judgment of the **High Court of Karnataka, at Bengaluru, in W.P.No.10103 of 2020 (LA-RES) and batch, dated 19.07.2022**, and contends that in the said case, the High Court of Karnataka has set aside the awards passed by the CALA and directed the authority to redetermine the compensation afresh, and if the parties are aggrieved by the fresh awards passed by the CALA, the parties can approach the arbitrator.

9.4. He also relies on the judgment of Hon'ble Supreme Court in **M/s Tirupati Developers v. The Union Territory of Dadra and Nagar Haveli**[19], and contends that the Hon'ble Supreme Court directed the Collector to give one opportunity to the appellant therein to submit its objections, followed by personal hearing and thereafter pass appropriate award after holding inquiry under Section 23 of the RTCTLARR Act, and therefore similar dispensation may be shown in the present writ petition as well in view of similarity of facts.

10. Having considered the respective contentions and perused the record, it may be noted that the grievance of the petitioners essentially is that multiple notifications under Sections 3A and 3D of the National Highways Act were issued with incomplete information, inadequate publication, and without providing proper landowner-wise details, maps, or an effective opportunity to file objections with regard to the acquisition of their agricultural lands for the proposed four-lane National Highway-163G, and

[19] Civil Appeal No.4952 of 2023, dated August 7, 2023

that their objections were not properly considered. It is also contended that the authorities proceeded with the declaration and award process even before obtaining environmental clearance, issued additional notifications without informing the affected landowners, and passed incomplete compensation awards without determining compensation for structures and trees, and without granting rehabilitation and resettlement benefits as required under the RFCTLARR Act, 2013 and the Removal of Difficulties Order, 2015. They also allege denial of statutory entitlements, and attempts by the authorities to forcibly take possession of their lands without paying lawful compensation, thereby threatening their livelihood as small and marginal farmers. It is also their grievance that the compensation cannot be confined only to the land on the mere ground that the land is an agricultural extent, and that compensation should also be granted for the structures existing on the land, and rehabilitation and resettlement benefits should be extended to the petitioners.

10.1. On the contrary, the essential contention of the respondents (NHAI and CALA authorities) is that the acquisition of the petitioners' land for the construction of the four-lane National Highway-163G (Mancherial–Warangal Greenfield Corridor) has been carried out strictly in accordance with the procedure prescribed under the National Highways Act, 1956 and the applicable provisions of the RFCTLARR Act, 2013, and that all statutory steps—issuance of notifications under Sections 3A and 3D, consideration of objections under Section 3C, conduct of enquiry, and passing of compensation awards under Section 3G—were duly followed. According to them, adequate opportunity was given to the landowners, and compensation has been determined and deposited as per law. It is also their contention that the entire village or villages have not been acquired, requiring the villagers,

along with their houses, cattle, and livelihood, to be shifted/relocated to an alternative location, or re-establish the village at some other place entirely; but only such extent of land(s) that is under alignment would go into the highway project, and only such limited extents of land(s) were acquired, and therefore there cannot be any contentions of displacement of persons requiring rehabilitation and resettlement under the RFCTLARR Act because they are not "displaced families". It is contended that any grievance regarding compensation must be pursued through the statutory remedy of arbitration under Section 3G(5) of the National Highways Act rather than through a writ petition, and the petitioners' allegations are unfounded. They further contend that the interim order restraining the project may be vacated since it delays a project of national importance and public interest.

11. At this juncture, it is to be noted that the project concerns the laying of a four-lane National Highway (Mancherial–Warangal Greenfield Corridor), and that land acquisition has been undertaken for the said highway. In land acquisition for a National Highway of this nature, connecting highways across States, the acquisition process or the laying of the highway *per se* cannot be stalled indefinitely by taking recourse to the extraordinary jurisdiction of this Court. Ultimately, the sole grievance that can be agitated by the aggrieved persons is confined to the compensatory benefits in lieu of the lands acquired, which is pecuniary in nature.

11.1 Further, the petitioners' grievance with regard to entitlement to compensation for structures, trees, standing crops, or even alternative rehabilitation/resettlement benefits is also justiciable, provided such structures are legally permitted, and the CALA has certified that the

structures/crops, etc., have been affected in the land acquisition process, in a way that resettlement and rehabilitation is necessary.

11.2 Be that as it may, in land acquisition for a public purpose, unless there are proven malafides, neither is the acquisition liable to be set aside, nor can the opinion of experts—either with regard to the alignment of the highway or with regard to the determination of factual aspects such as the extent of land acquired and the monetary compensation payable—be substituted by exercising extraordinary jurisdiction under Article 226.

12. At this juncture, it would be relevant to refer to the judgment of the Hon'ble Supreme Court in **Union of India v. Kushala Shetty**[20], wherein it was held as follows:

> **"24. Here, it will be apposite to mention that NHAI is a professionally managed statutory body having expertise in the field of development and maintenance of National Highways. The projects involving construction of new highways and widening and development of the existing highways, which are vital for development of infrastructure in the country, are entrusted to experts in the field of highways. It comprises of persons having vast knowledge and expertise in the field of highway development and maintenance. NHAI prepares and implements projects relating to development and maintenance of National Highways after thorough study by experts in different fields. Detailed project reports are prepared keeping in view the relevant factors including intensity of heavy vehicular traffic and larger public interest. The Courts are not at all equipped to decide upon the viability and feasibility of the particular project and whether the particular alignment would subserve the larger public interest. In such matters, the scope of**

[20] (2011) 12 SCC 69

judicial review is very limited. The Court can nullify the acquisition of land and, in rarest of rare cases, the particular project, if it is found to be ex facie contrary to the mandate of law or tainted due to mala fides."

13. Further, it would be relevant to refer to the judgment of the Hon'ble Division Bench of this Court in Writ Appeal No.774 of 2024, dated 07.08.2024, which is an appeal filed challenging a Notification for laying a national highway. The Hon'ble Division Bench, by referring to various precedent judgments of the Hon'ble Supreme Court, more particularly Kushala Shetty (supra), held as follows:

"12. In view of aforesaid enunciation of law, it is evident that the projects involving construction of new highways and widening and development of existing highways are vital for development of infrastructure of the country. The projects have been entrusted to the experts in the field of highways and it comprises of persons having vast knowledge and expertise in the field of highway development and maintenance. The NHAI is implementing the project relating to development and maintenance after thorough study by experts.

13. It is pertinent to note that in pursuance of the notification issued under the Act, award has already been passed on 10.05.2022 and petitioners No.8 and 11 in W.P.No.24150 of 2021 have even received the compensation. The project is virtually complete except for a small stretch."

14. In this connection, it is to be noted that under Section 3G of the National Highways Act, determination of compensation is entrusted to the Competent Authority for Land Acquisition (CALA). Significantly, Section 3G(5) expressly provides that where the amount determined by the

Competent Authority is not acceptable to either of the parties, the matter shall, on application, be referred to the Arbitrator appointed by the Central Government—ordinarily the District Collector. Thus, the statute itself creates a complete adjudicatory mechanism for redressal of disputes relating to compensation.

15. Further, once the Arbitrator renders an award under Section 3G(5) of the National Highways Act, 1956, such award is governed by the provisions of the Arbitration and Conciliation Act, 1996; and the persons aggrieved by the arbitral award has a further statutory remedy under Section 34 of the Arbitration and Conciliation Act before the competent Civil Court.

16. Though the existence of an alternative remedy is not a bar to invoking the writ jurisdiction of this Court under Article 226, its invocation comes with the rider that there should be exceptional circumstances, warranting invocation under Article 226 bypassing the statutory remedy. In this context, it is relevant to refer to the judgment of the Hon'ble Supreme Court in **Whirlpool Corporation v. Registrar of Trademarks**[21], wherein the Supreme Court held as follows:

> **"15. Under Article 226 of the Constitution, the High Court, having regard to the facts of the case, has a discretion to entertain or not to entertain a writ petition. But the High Court has imposed upon itself certain restrictions one of which is that if an effective and efficacious remedy is available, the High Court would not normally exercise its jurisdiction. But the alternative remedy has been consistently held by this Court not to operate as a bar in at least three contingencies, namely, where the writ petition has been filed for the enforcement of any of the Fundamental Rights or where**

[21] 1998 (8) SCC 1

there has been a violation of the principle of natural justice or where the order or proceedings are wholly without jurisdiction or the vires of an Act is challenged."

17. In the instant writ petition, this Court does not find any violation of fundamental rights *per se*, or any violation of the principles of natural justice, or any jurisdictional error on the part of the respondent authorities; nor does the writ petition challenge the vires of the Act passed by the competent authority. Further, it is the specific unrebutted contention of the respondents, borne out by the record, that out of 615 affected persons, only the present petitioners are challenging the acquisition with the claim of compensation for structures, trees, etc., and also rehabilitation and resettlement benefits. Further, some of the writ petitioners in this writ petition have accepted the compensation, and withdrawn from the writ petition. Furthermore, despite there being certain delay in obtaining environmental clearance, the very acquisition notifications cannot be set aside, as the issuance of notifications and their publication in Mana Telangana (Telugu) and The Hindu (English) newspapers, and considering of objections are *prima facie* not in dispute. The contention of the petitioners that the newspapers have little circulation and the petitioners were not aware cannot be countenanced, as primarily they submitted their objections.

18. Though the petitioners contend that they are entitled to certain rehabilitation and resettlement benefits, it cannot be disputed that the competent authority should have certified that the affected landowner has been displaced. Furthermore, the petitioners have a two-step statutory remedy, one under the National Highways Act, 1956 and, if still aggrieved,

the second under the Arbitration and Conciliation Act, 1996, and therefore the petitioners are not remediless.

19. In light of the judgment of Hon'ble Supreme Court in **Kushala Shetty (supra)**, and **Whirlpool Corporation (supra),** and also the judgment of the Hon'ble Division Bench in W.A. No. 774 of 2024, dated 07.08.2024, this Court does not find any exceptional circumstances to entertain the writ petition bypassing the statutory mechanism provided under the National Highways Act, 1956 and the Arbitration and Conciliation Act, 1996.

20. Accordingly, the writ petition is disposed of, relegating the petitioners to avail the statutory remedy under Section 3G(5) of the National Highways Act, 1956 and thereafter, if necessary, under Section 34 of the Arbitration and Conciliation Act, 1996. No costs. Interim order dated 06.12.2024 stands vacated. Miscellaneous petitions pending, if any, shall stand closed.

SD/- M. OSMAN ALI BAIG
ASSISTANT REGISTRAR

//TRUE COPY//

SECTION OFFICER

To,

1. The Principal Secretary, Revenue (JA and LA) Department, Dr. B.R. Ambedkar Secretariat buildings, Hyderabad, State of Telangana.
2. The District Collector, Jayashankar Bhupalapally District, Bhupalapally, Telangana State
3. The Revenue Divisional Officer cum Competent Authority for Land Acquisition, Bhupalapally Division, Bhupalapally, Jayashankar Bhupalapally District,
4. The Mandal Tahsildar, Chityal mandal, Chityal, Jayashankar Bhupalapally District
5. The Secretary, Ministry of Road, Transport and Highways, New Delhi, Union of India.
6. The Regional Officer, National Highway Authority of India, Banjara Hills, Road No.3, Beside SBH Staff College, Hyderabad
7. The Project Director, National Highways Authority of India, PIU, Warangal, 1-8-630, Balasamudram, Hanamkonda -506001

8. One CC to SRI CH.RAVI KUMAR, Advocate [OPUC]
9. One CC to SRI M.RAMU, SC FOR NHAI [OPUC]
10. One CC to SRI B.NARASIMHA SHARMA, ADDL. SOLICITOR GENERAL OF INDIA, High Court for the State of Telangana at Hyderabad [OPUC]
11. Two CCs to GP FOR LAND ACQUISITION, High Court for the State of Telangana, at Hyderabad [OUT]
12. Two CD Copies

BSR

GJP

HIGH COURT

DATED: 07/04/2026



ORDER

WP.No.34438 of 2024

DISPOSING OF THE WRIT PETITION, WITHOUT COSTS

15 copies

PVL

30/04/2026